

SUBSIDIARY LEGISLATION 595.49**SCIENCE MALTA (ESTABLISHMENT AS AN
AGENCY) ORDER**

17th May, 2024

LEGAL NOTICE 112 of 2024.

1. The title of this order is the Science Malta Citation.
(Establishment as an Agency) Order.
2. In this order, unless the context otherwise requires: Interpretation.
- "Act" means the Public Administration Act; Cap. 595.
- "Advisory Board" means the Advisory Board appointed in terms of article 12;
- "Agency" means Science Malta established in terms of article 3 and includes any person acting on its behalf under powers delegated by the Agency to that person in accordance with the provisions of this order;
- "Chairperson" means the Chairperson of the Consultative Committee appointed in terms of article 9(2);
- "Consultative Committee" means the Consultative Committee appointed in terms of article 9;
- "Chief Executive Officer" means the Chief Executive Officer appointed in terms of article 7;
- "connected person" means a person who is connected to a Board member or Committee member, by:
- (a) being a Board member or Committee member's spouse or partner, child or step-child, parent, cohabitant in terms of the Cohabitation Act, and any other dependent of such Board member or Committee member; Cap. 614.
- (b) being a body corporate in which the Board member, Committee member or any person as provided for in paragraph (a):
- (i) holds shares of a nominal value equal to at least twenty per cent (20%) of the share capital of that body corporate; or
- (ii) is entitled to control the exercise of more than twenty per cent (20%) of the voting power at any general meeting of such body corporate;

(c) acting in the capacity of trustee of any trust, the beneficiaries of which include:

(i) the Board member, Committee member, or any other person as provided for in paragraph (a); or

(ii) a body corporate as provided for in paragraph (b); or

(d) acting in the capacity of a business partner of such Board member, Committee member or of any person who, by virtue of paragraphs (a), (b) or (c) is connected with the Board member or Committee member;

"financial year" means a period of twelve (12) months beginning on the 1st day of January and ending on the 31st day of December of each year;

"Minister" means the Minister responsible for research and innovation;

"Permanent Secretary" means the Permanent Secretary within the Ministry responsible for research and innovation;

"science" means the systematic study and application of knowledge of the physical, natural and social world through observation, experimentation and testing of theories against evidence obtained, with a view to gaining a better understanding of the physical, natural and social world thereby allowing for innovation.

Establishment of
the Agency.

3. (1) There shall be an Agency to be known as Science Malta.

(2) The Agency shall be a body corporate having a distinct legal personality and shall be capable of entering into contracts, of acquiring, holding and disposing by whatever title of any type of property for the purposes of its functions, of suing and being sued, of doing all such things and entering into all such transactions as are incidental or conducive to the exercise of its functions under this order, including borrowing money.

(3) The legal and judicial representation of the Agency shall vest in the Chief Executive Officer:

Provided that the Chief Executive Officer may appoint any one (1) or more persons to appear in the name and on behalf of the Agency in any proceedings and in any act, contract, instrument or other document whatsoever, with such powers and under such terms and conditions as may be determined by him from time to time, which

powers may include the power of delegation.

(4) Any document purporting to be an instrument made or issued by the Agency and signed by the Chief Executive Officer or by any officer delegated on behalf of the Agency shall be received in evidence and shall, until the contrary is proved, be deemed to be an instrument made or issued by the Agency.

4. (1) It shall be the function and object of the Agency to: Functions of the Agency.

(a) coordinate and consolidate the national research and innovation programming endeavour;

(b) manage the national budgetary allocation for research, development and innovation;

(c) itself, or in collaboration with other entities, develop research funding programmes aimed to assist research and innovation sectors deemed of national relevance;

(d) itself, or in collaboration with other entities or on behalf of other entities, establish or award scholarships or fellowships to students or researchers;

(e) itself, or in collaboration with other entities or on behalf of other entities, organise educational programmes, student and lecturer exchanges, study or research opportunities or any other activities which facilitate, enhance and, or encourage education;

(f) establish, implement and manage grant-based and blended finance schemes for research, development and innovation;

(g) provide support to researchers and technologists in the development of their ideas, projects and products;

(h) submit proposals and recommendations to the Government on national positions on research and innovation matters;

(i) actively participate in the national socio-economic planning process as well as to set up networks of professional experts and organisations to assist in the formulation of research and innovation policies, the implementation of relevant programmes and to monitor areas in research and innovation that may be of interest to Malta;

(j) prepare periodic assessments concerning the effectiveness, relevance and impact of research and innovation in Malta;

(k) organise research and innovation activities which are of public benefit;

(l) promote the harmonisation and alignment across the Government's research and innovation policies and strategies;

(m) facilitate the international collaboration between research, development and innovation communities through the implementation of regional and international funding programmes, including bilateral and multilateral programmes and support schemes;

(n) actively participate in relevant European Union, regional and international policy fora related to research, development and innovation, for strategic guidance on current regional and international priorities and the implementation thereof through European Union, regional and international funding instruments, and for the international promotion of Malta's research, development and innovation sector;

(o) co-ordinate science diplomacy activities, including regularly scoping out opportunities to foster strategic partnerships related to research, development and innovation for international collaborative opportunities;

(p) act as Malta's National Contact Point structure for the European Union Framework Programmes for Research and Innovation;

(q) develop Malta's National Contact Point structure's support portfolio to assist potential applicants and beneficiaries of the European Union Framework Programmes;

(r) set up, nominate and maintain the structure underpinning the Programme Committee membership, at both delegate and expert level, for the implementation of the European Union Framework Programme for Research and Innovation;

(s) establish, implement and manage any national support schemes in relation to Malta's participation in the European Union Framework Programme;

(t) develop, monitor and update the national space policy and legal framework as necessary;

(u) act as Malta's institutional liaison organisation with the European Space Agency, including participation in the preparatory working structures of the European Space Agency;

(v) oversee the development of European Union,

regional and international collaborative initiatives in the space domain;

(w) promote space-related education;

(x) establish, manage and operate research and science centres, interactive experiences, exhibitions, educational displays, science museums or any other informative or educational endeavour which is open to visitors;

(y) conduct activities related to the commercialisation of science, technology, research and innovation; and

(z) carry out merchandising and retailing, promote new products, to grant and receive sponsorships, to prepare, distribute and sell publications, to organise and conduct training programmes and events, and to hire out venues.

(2) The Agency shall, in the performance of its functions, keep in consideration the public interest and shall draw up and publish an annual report concerning its activities in general.

(3) Without prejudice to sub-article (1), the Minister may, from time to time, give to the Agency directions, which shall not be inconsistent with the provisions of this order, to be followed by the Agency in the carrying out of its functions under this order, and the Agency shall, as soon as practicable, give effect to all such directions.

(4) The Minister shall assume a leadership role in ensuring ownership, coordination and transparency of research and innovation matters, and to ensure that the Agency is fully informed of strategic directions of the Government in relation to this order:

Provided that it shall be the duty of the Agency to properly execute such policies.

(5) In pursuance of its functions under this order, the Agency shall regulate its own procedure.

5. (1) The Agency shall have such powers as may be necessary or conducive for the proper performance and attainment of all its functions under this order and, without limitation to the generality of the foregoing but subject to any requirements under any other law, shall have the power and authority to:

Powers of the Agency.

(a) appoint technical and advisory committees;

(b) issue, manage, implement and monitor public schemes to finance research, development and innovation activities;

(c) create and manage other public schemes to

support and assist the capacity of public and private undertakings to partake in research, development and innovation funding endeavours;

(d) cooperate closely with other agencies, public authorities and Government departments to support and facilitate the timely and effective execution of their implementation roles and responsibilities, thereby contributing to the successful realisation of national research and innovation strategies and policies;

(e) provide advisory or other services or facilities in relation to any of its functions, or to assist in their provision;

(f) issue and publish guidelines to regulate research organisations;

(g) issue binding requests for information, including technical data, from other entities concerning matters affecting research, development and innovation policy and programming;

(h) establish and maintain institutional relationships with foreign research-funding organisations and other relevant international bodies;

(i) enter into bilateral and multilateral agreements with local and foreign entities in the area of research development and innovation; and

(j) participate in collaborative projects aligned with the core functions of the Agency.

Cap. 16.

(2) The Agency may, with the prior authorisation of the Minister, take part in the formation of a company, foundation, association or any other legal body which is recognised in accordance with the provisions of the Second Schedule to the Civil Code, or enter into joint ventures or partnerships for the purpose of fulfilling any of its functions.

(3) Where required in the performance of its functions, the Agency may also administer and organise panels or audit committees for the adjudication of grants, scholarships and funding related to education, research, development and innovation.

Organisation of
Agency.

6. The Agency shall, in consultation with the Minister, establish and re-organise the units, divisions and sections of the Agency as appropriate in order to exercise its functions.

Chief Executive
Officer.

7. (1) Without prejudice to the other provisions of this order, the executive conduct of the Agency, its administration, organisation and the administrative control of its officers and employees shall be the responsibility of the Chief Executive Officer,

who shall be appointed by the Minister.

(2) The Chief Executive Officer shall be responsible for the implementation of the objectives of the Agency in the exercise of its functions and, without prejudice to the generality of sub-article (1), shall:

(a) assume full responsibility for the overall supervision and control of the units, divisions and sections;

(b) assign to each unit, division and section such duties which he considers necessary or expedient;

(c) co-ordinate the work of the units, divisions and sections;

(d) develop the necessary strategies for the implementation of the objectives of the Agency; and

(e) perform such other duties as the Minister may assign to him from time to time.

(3) The Chief Executive Officer shall have such powers as may be necessary from time to time for the performance of the functions vested in him by this order, and such other powers as may be conferred or delegated to him by the Minister or his delegate.

8. The operations of the Agency shall be set out in an Agency performance agreement made in accordance with article 30 of the Act.

Agency
performance
agreement.

9. (1) The Minister shall establish a Consultative Committee to provide expert opinions on the overall strategic direction and general policies of the Agency.

The Consultative
Committee.

(2) The Consultative Committee shall consist of the Chief Executive Officer as an *ex officio* member, and a Chairperson and six (6) other members who shall be appointed by the Minister.

(3) The Minister shall select the members from among persons he deems qualified by reason of having had experience of, and shown capability in, matters relating to the functions of the Agency under this order.

(4) The remuneration paid to members of the Consultative Committee shall be in accordance with any directives and guidelines which may be issued by the Agency from time to time.

(5) The Consultative Committee shall make recommendations and report to the Minister.

Term of office of
the members of the
Consultative
Committee.

10. (1) Without prejudice to the provisions of sub-article (3) and article 11, the members of the Consultative Committee shall hold office for a period of up to three (3) years and on such terms and conditions as the Minister may deem appropriate:

Provided that a member shall, on the expiry of his term of appointment, be eligible for re-appointment.

(2) The Minister may at any time terminate the appointment of any member of the Consultative Committee if the Minister considers that such member is unfit to continue in office or has become incapable of properly performing the duties of a member of the Consultative Committee.

(3) If a member is appointed at any time after any one (1) or more members have already been appointed, the term of appointment of all members shall end on the date being three (3) years after the appointment of the first member as a member of the Consultative Committee.

Secretary to the
Consultative
Committee.

11. (1) There shall be appointed a Secretary to the Consultative Committee, who shall be appointed by the Minister for a period of three (3) years and shall, on the expiry of the term of appointment, be eligible for re-appointment. When the Secretary is appointed at any time after any one (1) or more members have already been appointed, the term of appointment of the Secretary shall end on the date being three (3) years after the appointment of the first member as a member of the Consultative Committee.

(2) The Secretary to the Consultative Committee shall not be a member of the Consultative Committee but shall attend its Consultative Committee meetings.

(3) The Secretary to the Consultative Committee shall be responsible for keeping the minutes of meetings of the Consultative Committee and for keeping such registers and records as the Secretary may be required to keep by the Consultative Committee.

(4) The Secretary to the Consultative Committee shall ensure that at least seven (7) days prior notice of all meetings is given to all Consultative Committee members.

The Advisory
Board.

12. (1) The Minister may establish an Advisory Board to assist the Chief Executive Officer in the discharge of his duties.

(2) The Advisory Board shall be chaired by the Chief Executive Officer and shall consist of not less than two (2) and not more than four (4) members appointed by the Minister.

(3) The remuneration paid to the members of the Advisory Board shall be in accordance with the provisions of article 33 of the Act.

(4) Without prejudice to any other provision of this order, the Advisory Board may make its own rules and otherwise regulate its own procedures.

13. Without prejudice to any other duty assigned to the members of the Consultative Committee or to the members of the Advisory Board, whether individually or collectively by this order or any other law, the Advisory Board members and the Consultative Committee members shall:

Duties of the Consultative Committee and Advisory Board members.

(a) act honestly and in good faith and promote the best interests of the Agency and the promotion and development of research, development and innovation;

(b) be obliged to exercise the degree of care, diligence and skill which would be exercised by a reasonably diligent person having:

(i) the knowledge, skill and experience that may reasonably be expected of a person carrying out the same functions as are carried out by, or entrusted to such Advisory Board member or Consultative Committee member in relation to the Agency; and

(ii) the knowledge, skill and experience which such Advisory Board member or Consultative Committee member has;

(c) not make any profit from their position, nor make personal gain or give any advantage to any third party from confidential Agency information;

(d) ensure that their personal interests are not in conflict with the interests of the Agency;

(e) not use any property or information of the Agency for their own benefit or for the benefit of any other persons, nor obtain benefit in any other way in connection with the exercise of their powers; and

(f) exercise the powers they have only for the purposes for which the powers are conferred and not misuse such powers.

14. (1) A natural person shall be disqualified for appointment to, or to remain a member of the Consultative Committee or the Advisory Board, if such person:

Disqualification from being a member of the Consultative Committee or the Advisory Board.

(a) is a Minister or Parliamentary Secretary;

(b) is a judge or magistrate of the Courts of Justice;

(c) is legally incapacitated or interdicted;

(d) has been declared an undischarged bankrupt or has made a composition or arrangement with his creditors;

Cap. 386.

S.L. 601.03.

(e) is subject to a disqualification order in accordance with article 320 of the Companies Act or is subject to blacklisting as provided in the Public Procurement Regulations;

(f) has any personal financial or business interests in any business, enterprise or activity which is related to any of the functions of the Agency and which is likely to affect his independence or objectivity in the proper discharge of his functions as a member of the Consultative Committee or the Advisory Board; or

(g) is a connected person to the person mentioned in paragraph (f).

(2) Notwithstanding the above or any other provision of this order or of any other law, no person occupying a public office or any office in any agency or body established by law or a company in which the Government has a controlling interest, shall be disqualified from occupying the office of Chief Executive Officer of the Agency, member of the Consultative Committee, member of the Advisory Board or Secretary of the Consultative Committee.

Conflicts of
interest.

15. (1) Any Committee member or Board member who has a direct or indirect interest in any project, research proposal, grant, scholarship, financing, support or other matter being considered or being proposed to be considered by the Consultative Committee or the Advisory Board, not being an interest which disqualifies such member in accordance with article 14 from being or remaining a member, shall disclose the nature of such interest, or if applicable, the nature of the interest of a connected person, at the first meeting of the Consultative Committee or the Advisory Board, as the case may be, after the relevant facts have come to the knowledge of such member.

(2) After the disclosure has been recorded in the minutes of the meeting of the Consultative Committee or the Advisory Board, as the case may be, that member shall withdraw from that part of the meeting at which the project, research proposal, grant, scholarship, financing, support or relevant matter is discussed or decided on by the Consultative Committee or the Advisory Board as the case may be and, in any event, that Committee member or Board member shall be prohibited from voting on such project, research proposal, grant, scholarship, financing, support or relevant matter.

(3) If the Consultative Committee or the Advisory Board is of the view that an interest disclosed to it in accordance with sub-article (1) is such that it satisfies the grounds for disqualification of a person from being a Committee member or Board member in accordance with article 14(1)(f) or (g), the Consultative Committee or

the Advisory Board, as the case may be, shall notify the Minister in writing, and the Minister shall take such steps as he may deem necessary in such circumstances, including:

(a) notifying the Consultative Committee or the Advisory Board that he disagrees with the decision, giving his reasons therefore; or

(b) terminating the appointment of such Committee member or Board member pursuant to article 10(2).

16. (1) A Committee member or Board member may resign from office at any time, by letter addressed to the Minister and copied to the Chairperson of the Committee or to the Chief Executive Officer as Chair of the Board from which he is resigning.

Resignation of members of Consultative Committee or of the Advisory Board and publication of appointment and termination of office.

(2) The appointment and, or termination of office of any person as member of the Consultative Committee or the Advisory Board shall be published in the Gazette.

17. (1) The Chairperson of the Consultative Committee shall call a meeting, either on his own initiative or at the request of any member of the said Committee. The Consultative Committee shall meet as often as may be necessary.

Proceedings of the Consultative Committee.

(2) A minimum of four (4) members of the Consultative Committee shall constitute a quorum at any meeting. Decisions shall be adopted by a simple majority of the votes of the members present and voting. The Chairperson of the Consultative Committee shall have an initial vote and, in the event of an equality of votes, a casting vote.

(3) Subject to the provisions of this order, the Consultative Committee may regulate its own procedure.

(4) Subject to the foregoing provisions of this article, an act or proceeding of the Consultative Committee shall not be invalidated merely by reason of the existence of any vacancy among the members of the Committee, provided that the quorum established in terms of sub-article (2) has been satisfied.

(5) All acts done by any person acting in good faith as a member of the Consultative Committee shall be valid notwithstanding that some defect in his appointment or qualification is discovered subsequent to any act or proceeding of the Committee.

18. (1) The Chief Executive Officer may establish technical committees to issue opinions, guidance and recommendations on particular themes or areas of research, development or innovation.

Technical committees.

(2) Such technical committees shall be composed of not less than two (2) and no more than five (5) members. The technical

committee shall elect a chair from among its members.

(3) The remuneration paid to members of a technical committee appointed in terms of this article shall be in accordance with any directives and guidelines which may be issued by the Agency from time to time.

(4) The provisions of articles 13, 14 and 15 shall apply to the members of any technical committee appointed in terms of this article.

Staff appointments.

19. (1) Without prejudice to the other provisions of this order, the appointment of officers and other employees of the Agency shall be made by the Chief Executive Officer, in accordance with the policies of the Agency from time to time.

(2) The Chief Executive Officer shall appoint and employ, at such remuneration and upon such terms and conditions established after consultation with the Permanent Secretary, such officers and employees as may, from time to time, be necessary for the due and efficient discharge of the functions of the Agency.

(3) Notwithstanding the provision of this article, the Prime Minister may, from time to time, on the recommendation of the Chief Executive Officer of the Agency, direct that any public officer shall be detailed for duty with the Agency in such capacity and with effect from such date as may be specified in the direction given by the Prime Minister.

Status of public officers detailed for duty with the Agency.

20. (1) Where any public officer is detailed for duty with the Agency under article 18(3), such officer shall, during the time in which such direction has effect in relation to him, be under the administrative authority and control of the Agency, but he shall for all intents and purposes remain and be considered and treated as a public officer.

(2) Without prejudice to the generality of the foregoing, a public officer detailed for duty as aforesaid:

(a) shall not during the time in respect of which he is so detailed:

(i) be precluded from applying for a transfer to a Government department, however so described in accordance with the terms and conditions of service attached to his appointment with the Government on the date on which he was so detailed for duty; or

(ii) receive remuneration and be subject to conditions of service which are less favourable than those attached to his appointment with the Government on the date aforesaid or which would have become attached to such appointment, during the said period, had

such officer not been detailed for duty with the Agency;
and

(b) shall be entitled to have his service with the Agency considered as service with the Government for the purposes of any pension, gratuity or benefit under the Pensions Ordinance and the Widows' and Orphans' Pensions Act and for the purpose of any other right or privilege to which he would have been entitled, and responsible for any obligation for which he would have been answerable, but for the fact of his being detailed for duty with the Agency.

Cap. 93.
Cap. 58.

(3) Where an application is made as provided in sub-article (2)(a)(i), the same consideration shall be given thereto as if the applicant had not been detailed for service with the Agency.

(4) The Agency shall pay to the Government such contributions as may, from time to time, be determined by the Minister responsible for finance in respect of the cost of pensions and gratuities earned by an officer detailed for duty with the Agency as aforesaid during the period in which he is so detailed.

21. (1) The Agency may, with the approval of the Prime Minister, offer permanent employment with the Agency to any officer detailed for duty with the Agency in accordance with article 18(3), at the remuneration and in accordance with terms and conditions not less favourable than those enjoyed by the said officer on the date of such offer.

Offer of permanent
employment with
the Agency to
public officers
detailed for duty
with the Agency.

(2) The terms and conditions of any permanent employment offered by the Agency in accordance with the provisions of sub-article (1) shall not be deemed to be less favourable merely because they are not in all respects identical or superior to those enjoyed by the public officer concerned on the date of the said offer, if such terms and conditions taken as a whole, in the opinion of the Prime Minister offer substantially equivalent or greater benefits.

(3) Every public officer who accepts permanent employment with the Agency offered to him in accordance with the provisions of sub-article (1) shall, for all purposes other than those of the Pensions Ordinance and of the Widows' and Orphans' Pensions Act, and saving the provisions of article 22, be deemed to have ceased to be in service with the Government and to have entered into service with the Agency on the date of his acceptance, and for the purposes of the said Ordinance and of the said Act, in so far as applicable to him, service with the Agency shall be deemed to be service with the Government within the meanings thereof respectively.

Cap. 93.
Cap. 58.

(4) Every such public officer as aforesaid who, immediately before accepting permanent employment with the Agency was entitled to benefit under the Widows' and Orphans' Pensions Act, shall continue to be so entitled to benefit thereunder for all intents as if his

Cap. 58.

service with the Agency were service with the Government.

(5) The Agency shall pay to the Government such contributions as may, from time to time, be determined by the Minister responsible for finance in respect of the cost of pensions and gratuities earned by an officer who has accepted permanent employment with the Agency as aforesaid during the period commencing on the date of the said officer's acceptance.

Persons deemed to be public officers.

22. The members of the Consultative Committee and the Advisory Board of the Agency and all officers and employees detailed with the Agency in accordance with the provisions of article 18(3), but excluding any officer who accepts permanent employment with the Agency in accordance with the provisions of article 21, shall be deemed to be public officers or employees within the meaning of the Criminal Code.

Cap. 9.

Finances.

23. (1) The Agency shall draw up yearly estimates for each financial year and submit them for consideration of the Minister in accordance with the norms and practices established by the Minister responsible for finance.

(2) The Agency shall be paid by the Government out of the Consolidated Fund such sums as the House may, from time to time, authorise to be appropriated to meet the cost of its operational and capital expenditure identified in its financial business plan or budget.

(3) The Minister may, after consultation with the Minister responsible for finance, give directives with a view to applying any excess of revenue over expenditure to the formation of reserve funds to be used for the purposes of the Agency. Without prejudice to the generality of the powers given to the Minister by this sub-article, any directive given by the Minister as aforesaid may order the transfer to the Government, or the application of such funds in such manner as may be specified in the directive.

(4) Any funds of the Agency not immediately required to meet expenditure may be invested in such manner as may, from time to time, be approved by the Advisory Board.

Accounts and audit.

24. (1) The Agency shall keep proper accounts and other records in respect of its operations and shall prepare a statement of accounts in respect of each financial year.

(2) The accounts of the Agency shall be audited by certified auditors.

Annual reports.

25. (1) The Agency shall, not later than six (6) months after the end of each financial year submit to the Minister and to the Minister responsible for finance, a report dealing generally with the activities of the Agency during that financial year and containing an audited statement of accounts together with such information relating

to the proceedings and working of the Agency as either of the Ministers may, from time to time require.

(2) The report referred to in sub-article (1) shall be laid on the Table of the House by the Minister not later than six (6) weeks after its receipt, or where the said House is not in session or during which it is adjourned, not later than one (1) week after the House resumes its sittings.

26. The Agency shall be exempt from any liability for the payment of income tax and duty on documents under any law for the time being in force.

Exemption from taxes.

27. With effect from the date of the coming into force of this order:

Transitory provisions.

(a) the rights, functions and powers which are currently vested in the Malta Council for Science and Technology shall be transferred to the Agency as stipulated by articles 5 and 6 and the Malta Council for Science and Technology shall have no further obligations with respect to the carrying out of such functions or powers;

(b) any pending commitments, contracts or agreements concluded by the Malta Council for Science and Technology or the Malta Council for Science and Technology Agency with third parties relating to any of the functions transferred to the Agency, any such commitment, contract or agreements shall be transferred to the Agency who shall, as from the aforesaid date, substitute the Malta Council for Science and Technology and the Malta Council for Science and Technology Agency as a party to the said commitment, contract or agreement;

(c) any legal proceedings pending against the Malta Council for Science and Technology or the Malta Council for Science and Technology Agency and such proceedings are related to any of the functions transferred to the Agency, the Agency shall, as from the aforesaid date, substitute the Malta Council for Science and Technology and the Malta Council for Science and Technology Agency in such proceedings or shall be made a party thereto;

(d) the Agency shall assume responsibility for all assets, liabilities and obligations previously held or entered into by Malta Council for Science and Technology and the Malta Council for Science and Technology Agency and emanating or arising from the functions of the Agency.